

GOD OF SPLINTERLANDS

NON-DISCLOSURE AGREEMENT

CONFIDENTIALITY AGREEMENT

Template for employees, candidates, contractors, and service providers

IMPORTANT: Complete all bracketed fields and have the final version reviewed by a qualified lawyer in the governing jurisdiction before signing. This general template is not legal advice.

1. PARTIES AND EFFECTIVE DATE

This Non-Disclosure Agreement (the “Agreement”) is entered into on [Effective Date] (the “Effective Date”) by and between:

Disclosing Party: [Full legal name of company/entity], a [type of entity] organized under the laws of [jurisdiction], with its registered address at [address] (the “Company”); and

Receiving Party: [Full legal name of individual or entity], with an address at [address] (the “Recipient”).

The Company and the Recipient may each be referred to as a “Party” and together as the “Parties.”

2. PURPOSE

The Company may disclose certain Confidential Information to the Recipient solely so that the Recipient may evaluate, discuss, perform, or provide services in connection with the God Of SplinterLands project and related business activities (the “Purpose”). The Recipient must use Confidential Information only for the Purpose and for no other purpose.

3. CONFIDENTIAL INFORMATION

“Confidential Information” means all non-public information disclosed or made available by or on behalf of the Company, whether before or after the Effective Date, in any form (including oral, visual, written, electronic, source-code, or other form), that is identified as confidential or that reasonably should be understood to be confidential given its nature or the circumstances of disclosure.

Confidential Information includes, without limitation:

• Product plans, roadmaps, unreleased features, game design documents, rules, mechanics, balancing, gameplay systems, prototypes, and test builds;

• Source code, object code, software architecture, APIs, databases, infrastructure, credentials, security information, technical documentation, and development methods;

• Blockchain plans and implementations, smart contracts, wallet integrations, NFT standards and metadata, token designs, tokenomics, transaction flows, and security reviews;



• AI models, prompts, workflows, datasets, generated character concepts, artwork, assets, and related intellectual property or production processes;

• Character designs, card artwork, storylines, animations, visual effects, UI/UX designs, sound, and other creative materials;

• Business plans, budgets, financial information, pricing, commercial terms, marketing plans, partnerships, investor information, and strategies;

• Information about employees, candidates, contractors, customers, users, suppliers, and business partners; and

• The existence and status of discussions, negotiations, this Agreement, and any notes, analyses, copies, or materials derived from the above.

Confidential Information may be protected whether or not it carries a confidentiality label.

4. EXCLUSIONS

Confidential Information does not include information that the Recipient can demonstrate through contemporaneous written records: (a) is or becomes publicly available through no breach of this Agreement by the Recipient or anyone for whom the Recipient is responsible; (b) was lawfully known to the Recipient without a duty of confidentiality before disclosure by the Company; (c) is lawfully received from a third party without breach of a confidentiality obligation; or (d) was independently developed without use of or reference to the Confidential Information.

Information is not excluded merely because individual elements are public or known if the combination or arrangement of those elements is not public or known.

5. RECIPIENT'S OBLIGATIONS

The Recipient shall:

• Keep all Confidential Information strictly confidential and protect it using at least reasonable care, and no less than the care used to protect the Recipient’s own similarly sensitive information;

• Use Confidential Information only for the Purpose;

• Disclose Confidential Information only to the Recipient’s employees, officers, professional advisers, or approved subcontractors who need to know it for the Purpose and are bound by confidentiality obligations at least as protective as this Agreement (each, a “Permitted Representative”);

• Be responsible for any act or omission of its Permitted Representatives that would breach this Agreement if done by the Recipient;

• Not copy, reproduce, download, record, photograph, publish, distribute, or otherwise make Confidential Information available except as reasonably necessary for the Purpose;

• Not reverse engineer, decompile, disassemble, or attempt to derive source code, underlying models, or underlying design from any software, prototype, build, or materials provided by the Company, except to the extent such restriction is prohibited by applicable law;



• Not remove or alter confidentiality, copyright, or proprietary notices;

• Promptly notify the Company in writing upon discovering any unauthorized access, use, disclosure, loss, or suspected compromise of Confidential Information, and reasonably cooperate to limit its impact; and

• Not make any public statement, portfolio entry, case study, social media post, press release, or other disclosure about the project or the Company without the Company's prior written consent.

6. SOURCE CODE, ASSETS, AND AI SERVICES

Without the Company's prior written authorization, the Recipient shall not upload, submit, expose, or otherwise provide Confidential Information—including source code, unpublished designs, prompts, datasets, credentials, business information, or unreleased game assets—to any public or third-party AI tool, model-training service, code assistant, repository, file-sharing service, or other external platform where the information may be retained, used for training, accessed by others, or processed outside the Company's approved environment.

The Recipient shall use only Company-approved repositories, communication channels, storage locations, development tools, and access credentials when handling Company materials. The Recipient shall not share accounts or credentials.

7. LEGALLY REQUIRED DISCLOSURE

If the Recipient is legally required by a court, regulator, or governmental authority to disclose Confidential Information, the Recipient shall, to the extent legally permitted, give the Company prompt written notice and reasonably cooperate with the Company's efforts to seek confidential treatment or limit disclosure. The Recipient shall disclose only the portion legally required.

8. OWNERSHIP; NO LICENSE

All Confidential Information remains the property of the Company or its applicable licensors. No license, assignment, or other intellectual-property right is granted to the Recipient by this Agreement, whether by implication, estoppel, or otherwise, except the limited right to use Confidential Information for the Purpose.

This Agreement does not itself determine ownership of work product, inventions, code, designs, or other deliverables created by the Recipient. Any such ownership and assignment must be addressed in a separate written employment, contractor, services, or intellectual-property agreement.

9. RETURN OR DESTRUCTION

Upon the Company's written request, or when the Purpose ends, the Recipient shall promptly stop using the Confidential Information and, at the Company's choice, return or securely destroy all Confidential Information and copies in the Recipient's possession or control. Upon request, the Recipient shall confirm completion in writing.

The Recipient may retain a copy only to the extent required by applicable law or automatically stored in routine backup systems that are not readily accessible, provided that any retained information remains protected under this Agreement and is not restored or used except as required by law.

10. TERM AND SURVIVAL



This Agreement begins on the Effective Date. The Recipient's confidentiality and non-use obligations apply to Confidential Information disclosed during the period of [number] years from the Effective Date, unless the Parties agree otherwise in writing.

For each item of Confidential Information, the obligations in this Agreement continue for [number] years from the date of its disclosure. To the extent information qualifies as a trade secret under applicable law, the obligations continue for as long as that information remains a trade secret under that law.

11. NO WARRANTY; NO COMMITMENT

Confidential Information is provided "as is." The Company makes no representation or warranty, express or implied, as to its accuracy or completeness, except as may be expressly agreed in a separate signed writing. Neither this Agreement nor any disclosure requires either Party to proceed with a transaction, hire or engage the Recipient, or enter into any further agreement.

12. REMEDIES

The Recipient acknowledges that unauthorized use or disclosure of Confidential Information may cause harm for which monetary damages may not be an adequate remedy. Subject to applicable law and the court's discretion, the Company may seek injunctive or equitable relief in addition to any other remedies available at law. No remedy is waived by delay or partial exercise.

13. GENERAL

This Agreement constitutes the entire agreement between the Parties concerning its subject matter and supersedes prior discussions on that subject. Any amendment or waiver must be in writing and signed by both Parties.

The Recipient may not assign or transfer this Agreement or any rights or obligations under it without the Company's prior written consent. The Company may assign this Agreement to an affiliate or successor in connection with a merger, reorganization, or sale of substantially all relevant assets.

If any provision is held invalid or unenforceable, the remaining provisions remain in effect, and the invalid provision shall be modified only to the minimum extent necessary to make it enforceable where permitted by law.

No failure or delay in exercising a right is a waiver of that right. This Agreement may be signed in counterparts and by electronic signature, each of which is treated as an original to the extent permitted by applicable law.

14. GOVERNING LAW AND DISPUTES

This Agreement is governed by the laws of [State/Country], without regard to its conflict-of-laws principles. The courts located in [City, State/Country] shall have [exclusive/non-exclusive] jurisdiction over disputes arising out of or relating to this Agreement, subject to any mandatory rights under applicable law.

15. SIGNATURES

By signing below, each Party confirms that it has read, understood, and agrees to be bound by this Agreement.



FOR THE COMPANY	RECIPIENT
Legal name: _____	Full legal name: _____
By: _____	Signature: _____
Name: _____	Name (if entity): _____
Title: _____	Title (if entity): _____
Date: _____	Date: _____